

MODULE TITLE:
***LEGAL AND ETHICAL ISSUES IN
COMPUTING SYSTEMS***

Course aims

- The main purpose of the module is to expose students to the status of the regulation and developing markets.
- The module will also examine and evaluate the meaning of ethics, moral ,legal issues and professional conduct including the protection of personal ethical concerns.
- The module focuses on issues that involve computer impact on society and related concerns.
- The basic background to develop their professional role in the workplace, beyond simply performing technical tasks assigned to them.

Course content

- Understanding morality, nature of ethics and law
- Professionalism and ethical (principals/right) conduct
- Introduction to law and its relevance to the IT theory and practice.
- Legal regulatory (controlling/guiding) framework (structure) on computer use and information.

Cont...

- Computer use and crime (corruption/wrongdoing).
- Privacy, human rights, data protection and computer use.
- Understanding contract, employment and other salient (relevant) legal issues with specific emphasis on restraint (limit) of trade clauses and agreements.

Course content

- Intellectual property and the national and international legal instruments on invention (development), innovation and computer development.
- Risk and mitigation (modification) of risk by computer specialists through insurance.
- Product liability, negligence and provision of competent, professional and efficient service.

Cont...

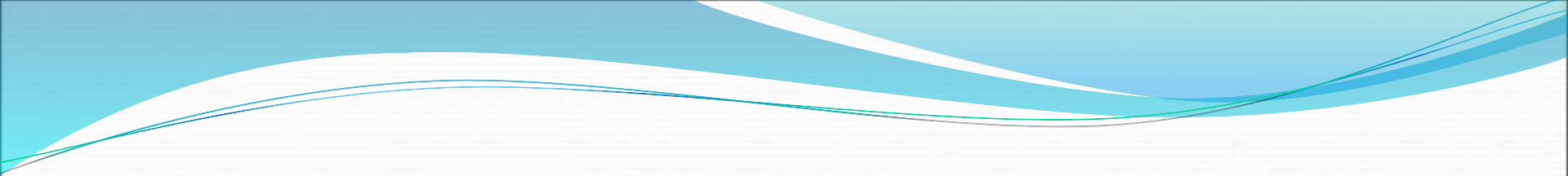
- National and international legal frameworks; specific legislation and case law involving IT issues.
- IP law; Data Protection; Computer misuse; Software Licensing, Transitional (temporary) data flow; copyright protection; Information as a source of economic power; rights to access computer systems; computer crime; data privacy; establishing national priorities in the technical and social aspects of computing
- Legal and ethical issues in E-commerce and electronic trading

Assessment

- Assessment will be in terms of Coursework (CAT and Quiz, Assignments) 50%
- Final written examination 50%

Reading List

- Computer Ethics: Integrating Across the Curriculum by Marion Ben-Jacob, Mercy College, ISBN-13: 9780763778095, ISBN-10: 0763778095, CD-ROM, 2010 40
- Pandora's Box: Social and Professional Issues of the Information Age by Andrew A. Adams and Rachel McCrindle (Paperback - 14 Dec 2007)
- David Bainbridge, Introduction to Computer Law [Pearson Longman, London 2004]
- Kizza, J. M. Ethical and Social Issues in the Informational Age. 2ND edition. Springer-Verlag, New York, Inc. 2003
- 5. Quirk, P., Forder, J. Electronic Commerce and the Law. 2ND edition. John Wiley & Sons Australia 2003 0-470-80238-3



LECTURE ONE

Introduction to Law, morality and Ethics

Introduction to Law, morality and Ethics

What is Law?

- In general, a rule of being or of conduct (behavior), established by an authority able to enforce its will;
- a controlling regulation; the mode or order according to which an agent or a power acts.
- LAW - Rules established by a governing (leading) authority to institute and maintain orderly coexistence (existence) rural areas and urban

Def: Cont'd

- Is the collection of rules imposed by authority; "civilization accepts respect for the law";
- Is a legal document setting forth rules governing a particular kind of activity; "there is a law against kidnapping"

Importance of law

- To regulate the behavior of persons in the society
- To ensure that the peoples rights are protected
- To establish the procedures and regulations to govern transactions (trade/business)
- To maintain political, economical and public order
- To bring about justice and fairness to members of the community
- To maintain peace and security

Importance of law

- Need to control the ignorant
- Safety of society by applying penalties

Knowledge of the law enables (allows/permits) individuals

- To know their rights
- To know their obligations
- To know where to go and what to do when rights are violated
- Law can be said to consist of those rules made and standards prescribed by the people in authority governing and generating peaceful relations

Origin of rules

- They originate from:
 - **Acts of parliament laws made by parliament**
 - Customs (duties) and practices
 - are enforceable (applicable) by the state (public/government) through courts of law
 - Enforcement (implementation) by courts usually takes the form:
 - **Punishment in criminal matters**
 - **And compensation called damages in civil matters**

Types of laws

- **Criminal law** governs or regulates the relationship between the **state** and **individuals**
 - It lays down the kind of conduct, act or behavior which amounts to crime.
 - Crime is a public wrong.
 - If one commits a crime e.g. murder, he commits a crime against a state and the penalty **imprisonment** or ***Death***
 - Criminal law is found in a panel code Act
 - The traffic and road safety act
 - Prevention of corruption act

Civil law

- **Civil law** governs the relations between the **private individuals** any injustice is paid by monetary damages or injunctions (order/ruling)
- It includes laws such as :
 - The contract act
 - Sale of goods act, among others

Laws and morals

- Rules of law must be distinguished from morals (ethics).
 - Moral wrongs are those wrongs which are committed but the wrong doers are not punished in courts of law
 - It's a society that perceives/observe such acts to be morally wrong e.g. wearing a short skirt in public
 - Eating while walking
 - Dancing while walking
 - Or kissing in public

Legal wrongs

- These are punished or enforced in courts of law
e.g.
 - Stealing
 - Killing some one
 - A failure to perform an obligation under contract

Sources of case materials

- This include:
- **Law reports:** these are a compilation of cases and judgments from court records
 - e.g.
 - RWANDA law reports
 - High court bulletin (statement)
 - E.A COURT OF APPEALS (application)

CASE BOOKS

- Constitute collection of decisions of courts
- They result from a situation where an individual compiles
 - a book of cases on a specific subject
 - such as land law
 - Contract
 - Agency (activity/work)

Reading cases

- What is a case?
 - It s a situation where by different persons who have a dispute/argument between them or a complaint appear before a court
 - And seek redress (restore/damage)
 - A remedy (medicine/preparation)
 - A settlement (payment/rembursement)
 - Or for a court to determine what party has a right to whatever is in a dispute between them

Cont'd

- **A case may be a:**
 - **A civil case**
 - **A criminal**
 - **Or a constitutional case**
 - **A civil case:**
 - It is where the parties involved are individuals e.g.
 - **Henry Vs Christine**
 - In a civil case the parties involved include:
 - The plaintiff (accuser/complainant)
 - The defendant

Cont'd

- **A plaintiff (complainant):**
 - This is the one who is injured and who takes the matter to court so as to get a solution
- **A defendant (Suspect):**
 - This is a party /person who is taken to court or is sued

A criminal case

- It is the one that involves situations where an individual [s] break[s] / breaches one of the criminal laws
- If this happens then we say that
 - He has breached (broken) the peace of the society and
 - The society forms the state.

Cont'd

- i.e. the state appears in court on
 - behalf of the society
 - Community
 - Person who is wronged
 - It's the state that sues (bring some body to court) the wrong doer

Parties involved

- A criminal cases involves the following parties
 - **The state**
 - The party who reports the case to the public or the person wronged is not the one to sue (to go to court)
 - He is the complainant and a major witness to the state
 - The state may be Rwanda ,Kenya, Uganda ,

Cont'd

- **The accused;**
 - This is a person against whom the compliant is being made
 - The person who is being accused of having committed a crime and is taken before a court of law by the state
 - When he is found guilty of the crime
 - he is convicted[found guilty] of the offence (wrongdoing) with which he was charged and is called a convict (criminal).

Components of the case

- **What to look for in the case?**
 - Citation (reference)
 - Material facts
 - The court that decided the matter
 - Issues
 - The holding/ decision:

Citation

- This means the location of a case
 - It comprises the parties
 - The law report where the case is reported
 - The volume in which its reported and
 - The page

Material facts

- This covers the important facts of the case which gave the birth to the dispute (argument) between the parties
- **i.e.**
 - What really happened between the parties that led to the bringing of the case before a court of law?

The court that decided the matter

- This is important to enable one know the weight that is to be attached to a particular case
- and that application of the doctrine (policy/principle) of the precedent (model/example)

Issues

- This entails the matters in disagreement between the parties on which they would like the court to make a decision
- **i.e.:**
 - The point of disagreement between the parties
 - E.g. where there was a valid contract
- **The holding/ decision:**
 - This covers the judgment or a decision of the court in that particular case

Classification of laws

- Law can be divided into various classes:
 - Public law
 - Private law
 - International law
 - Municipal (civic/public) law
 - Substantive (functional/fundamental) law
 - Procedural (technical) law

Public law

- This is the law that governs the relationship between the state and the citizens
- This is the part of the law in which the state has an interest
- It includes;
 - Criminal law
 - Constitutional law
 - Administration law

Administrative law:-

- **Administrative law:-**

- is concerned with officials, boards, and commissions created by legislative representations for the purpose of carrying out legislative functions.
- Orders and decrees (judgment) of administrative boards, such as :-
 - the Interstate Commerce Commission,
 - the Federal (national/state) Trade Commission,
 - the National Labor Relations Board, and so forth, fall within the field of administrative law.

Private law

- This is the law that governs the relationship between and among the citizens themselves
- It includes:
 - Contract law
 - Law of succession
 - Land law

International law

- This is that part of the law that governs the international relations
- It regulates the relationship between the sovereign (independent) states
- It is contained in:
 - Treaties (Accord)
 - Conventions
 - Charters (contract/agreement)
 - Declarations (Announcement)

Municipal law

- This is basically domestic (local/international) law
- It's the law of the land made in the country
- **Substantive (essential) law:**
 - This is the part of the law that lays down what should be or what should not be done
 - It lay down the duties and rights of individuals
 - It may be criminal or civil

Procedural laws

- This is part of the law that lays down the procedures to be followed in enforcing/protecting individuals

Morality and the Law

Lecture objective

- ❖ Defined morals and morality
- ❖ Discuss two theories of morality
- ❖ Understanding the concept of moral codes
- ❖ Understanding the concept of moral standards
- ❖ Relating law and morality

The Concept of Morality

- In order to understand the term morality it is very important to define the term **moral(s)**.
- Morals are actions of what is right or wrong depending on God/ religion, society or culture.
- Morality is a set of rules for right conduct, a system used to modify and regulate our behavior.

The Concept of Morality

- It is a quality system in human acts by which we judge them right or wrong, good or bad. This system creates moral persons who possess (have) virtues (qualities) like love for others, compassion (kind), and a desire for justice; thus it builds character traits (personality) in people.

Moral Theories

- According to MacDonnell, moral theories “**seek to introduce a degree of rationality (wisdom) and rigor (accuracy/objectivity) into our moral deliberations**”
- Moral theories highlight the importance of morals in our day today society.
- They give our deliberations credibility (authority/integrity) and help us to better understand those values.

Moral Theories- (God (of Abraham, Isaac and Jacob))

- The first moral theory was designed by the ancient Philosopher (God (of Abraham, Isaac and Jacob)) also has a scheme for right conduct or modifying and regulating our behavior as human beings through His word.

Moral Theories- (God (of Abraham, Isaac and Jacob))

- According to God (NIV) as shown in His inspiration through the psalmist word of God is a lamp unto our feet and a light unto our path which implies that word of God is a system that guides us (psalms 119: 105). Thus God is the first moral (ethics/honest) theorist.

Moral Theories-Immanuel Kant (1724–1804)

- Kant for example **opined** that moral requirements are based on a standard of rationality (wisdom) he created as the “**Categorical Imperative (commanding)**” (CI) implying that immorality involves a violation of the CI and is thereby irrational.

Moral codes

- The *Internet Encyclopedia of Philosophy* defines moral codes as ***rules or norms within a group for what is proper behavior for the members of that group.***
- Moral codes are rules that govern a particular group of people against which quality is measured.

Moral codes

- Moral codes will help a particular group of people to compare a behavior whose quality is doubted. Societies survive through moral codes; failure to observe moral (honest/good) codes leads to **break down of societies.**

Moral codes

- Different cultures have different codes
- Morality is relative to time, there have been some timeless (unending) and culture-free (moral) codes that have been nearly universally observed. Such codes include;
 - ❖ ***The Golden Rule:*** “Do unto others as you would have them do unto you.”
 - ❖ ***The Silver Rule:*** “Do not do unto others what you would not have them do unto you.”
 - ❖ ***The Bronze Rule:*** “Repay kindness (sympaty) with kindness.”

Moral standards

- Amoral standard is a moral norm, a standard to which we compare human actions to determine their goodness or badness. This standard guides and enforces policy.
- Moral standards are norms used to determine how bad or good something or an action is; for example when one commits *adultery* according the Christian code of conduct it is regarded as sin (which is done against one's body) and therefore a bad act.

Moral standards

- Morality is a system that, in addition to setting standards of virtuous (good/honest) conduct for people, also consists of mechanisms to self-regulate through enforcement of the moral code and **self-judge** through **guilt**, which is an internal discomfort resulting from disappointment in self-mediated conscience.

Moral standards

- **Moral guilt** is individual judgment based on moral standards. The inner judgment is what is called **consciousness** or **self-realization** which comes from the Latin word knowing with.
- Guilt can be eased by encouraging people to focus on the **intentions (targets/goals) behind the actions**. Sometimes the intentions may be good but the resulting action is bad. In such a case the individual should not feel so guilty about the action.

The law

- Our moral code, and many times the law, lay out the general principles that we *ought (must) not do or that because it is wrong to do it. The law also tells us **not to do this*** or that because it is illegal **to do so**.
- However, both systems do not specifically tell us whether a particular human action just committed is an **immoral** or **illegal act**.

The law

- The law may be a very important instrument in practicing good moral value. *Law can be defined as an instrument of exercising power.*
- Law can be categorized as **natural** or **conventional law**.
- Natural law is regarded as the divine (heavenly/godly) or eternal law. It is one that is given by the highest authority (God).

The law

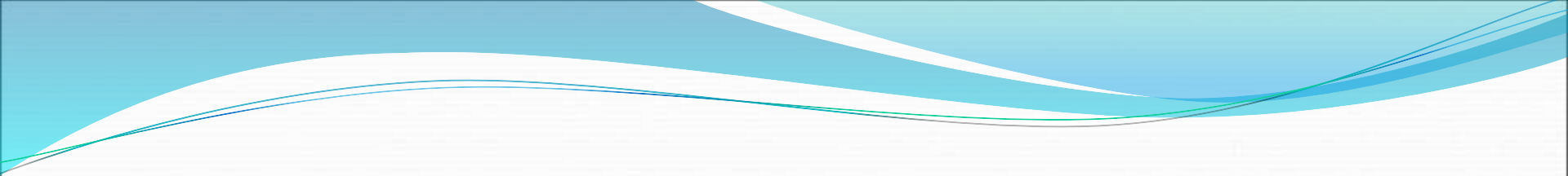
- Conventional law on the other hand is manmade (artificial) law e.g law of nature. It originates from natural law and other laws adopted from early communities like that of the Jews, Babylonians by Roman Empire; and development of unwritten precedents over centuries

Relating morality and the law to computing

- The computing (calculating) society comprises of experts and novices (beginners/learners). Morals guide the way we behave in a particular society.
- In the world of computing for example, using an email requires one to have an **ID** and **password**.
- Giving your password to another person may not be unlawful but it is not morally acceptable in the computing society because of security implications.

Relating morality and the law to computing

- IT professionals are expected to respect patent rights of developers of the different computing technologies.
- Failure to do so may implies violating patent rights of the producer of such technologies hence bringing in legal implications.



The end